

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN TANZANIA

Complete Community Opposition How-To

This guide uses the Tanzanian terms and bodies you'll actually run into — the EIA certificate and the EIS, NEMC and the Minister, the public hearing, the Environmental Appeals Tribunal, village land and the Village Assembly, CHRAGG — and explains each in plain words the first time. Tanzania's civic space is restricted and, in land conflicts, dangerous, so this guide favours lawful, technical, procedural work and treats your safety seriously.

INTRODUCTION & FRAMEWORK

Every year, more than two million wildebeest, zebra, and antelope thunder across the northern **Serengeti** in the greatest land-mammal migration on Earth. So when the Tanzanian government planned a paved "superhighway" straight across that migration corridor, the alarm was global — and the response showed a lever many Tanzanian communities overlook. A Kenya-based organisation, the **Africa Network for Animal Welfare (ANAW)**, took the government not to a Tanzanian court but to the **East African Court of Justice (EACJ)** — the regional court of the East African Community. After a four-year case, in **June 2014 the EACJ ruled the paved highway unlawful** — an infringement of Tanzania's treaty obligations to protect the environment — and issued a **permanent injunction** restraining the government from building it. The migration was saved from the paved road.

The Serengeti highway was stopped not in a Tanzanian court but at the **East African Court of Justice (EACJ)** — the regional court few think to use — where a four-year case won a permanent injunction against the paved road. That regional forum is one lever; alongside it, Tanzania gives communities a real, if narrow, domestic toolkit. An **EIA certificate** is required before any project (and before a sector licence can even be applied for). **Public participation**, including public hearings, is required, with the assessment summarised in **English and Kiswahili**. And — distinctively powerful — **village-land rights** mean the **Village Assembly and Village Council** must be consulted, and any acquisition requires **full, fair, and prompt compensation**. But these tools have grave limits, and this guide states them plainly. Tanzania prioritises investment and state-led development; the EIA certificate is finally issued by a **government Minister**; the specialist **Environmental Appeals Tribunal** has barely functioned; consent is often treated as a formality; and — most seriously — **civic space is restricted and tightening, and in land conflicts like Ngorongoro, Loliondo, and the EACOP corridor the state has used force and arbitrary arrests against defenders**. The safest and most effective work here is **technical, procedural, and lawful** — insisting the EIA and village-land consultation follow the law, using the documents, raising defects through proper channels and, where fitting, the regional court — rather than confrontation that can be branded anti-development or a threat.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Tanzanian project needs its **EIA certificate** (from NEMC, issued by the Minister) before it can even apply for its sector licence; where it's on **village land**, it needs the **Village Assembly's** consultation and lawful, fully-compensated acquisition; and it can be challenged through appeals, the courts, and — for regional

impacts — the **East African Court of Justice**. Every one of those is a link you can grab. **Find the one closest to your hand and pull — lawfully, and safely.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **If it's on village land, the Village Assembly consultation and full-compensation rules are your sharpest, most distinctive lever** — a real, enforceable community right.
- **If the EIA was skipped or defective, that's a genuine ground** — no EIA certificate, no lawful project or licence.
- **If the impact is regional (a shared ecosystem, a transboundary resource), the East African Court of Justice is a powerful, safer forum** — the Serengeti route.
- **In dangerous land conflicts, confrontation is perilous** — work technically and lawfully, protect your people, and lean on the courts and international attention.

Read the whole guide once before you move. Two habits run through it: **use the levers the law gives you — lawfully** — the EIA, the village-land rights, the appeals and courts, the regional court — and **combine the strands**: the documents, the participation, the legal routes, and (carefully) international attention. That combination, brought lawfully, is what works here.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core decision is the **EIA certificate**, assessed by **NEMC** (the National Environment Management Council) and finally **issued by the Minister** responsible for the environment — required before any significant project, and before its sector licence (a mining licence, say) can even be applied for. **Sector regulators** grant the licences. And crucially, most rural land is **registered village land** under the Village Land Act, governed by the **Village Assembly and Village Council**. Know which decision you can reach — and remember that on village land, the community's own governance is a real gatekeeper.

How a Project Moves — and Where You Jump In

The EIA and public participation. The developer files a **project brief**, then a full **EIS** with **scoping** and **public participation**, including **public hearings**, summarised in English and Kiswahili. *Your opening — and it arms every later step*: take part lawfully, put your objections on the record, and insist the participation and the Kiswahili summary genuinely happened.

The village-land consultation. On village land, the **Village Assembly** must be consulted, and acquisition requires **full, fair, and prompt compensation**. *Your opening — a powerful one*: a project that bypassed the Assembly or offered no proper compensation is unlawful.

The certificate and licence. The Minister issues the EIA certificate; the sector licence follows. *Your opening*: a certificate built on a defective EIA, or a licence sought before the certificate, can be challenged.

Construction. *Your opening*: breaches, and (for regional impacts) the EACJ.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — company and, often, foreign-investor records set the exposure. **What it still needs** — the EIA certificate not issued, the village-land consultation not done, the licence not granted, financing not closed: whatever's missing is the soft spot. **Who's paying and lending** — international financiers with their own environmental and human-rights standards (the EACOP fight has turned partly on lenders and insurers).

Who's Supposed to Be Watching

Each is an ally or an arena — used carefully. **NEMC** assesses the EIA (the Minister decides). The **Village Assembly and Council** govern village land. The **Environmental Appeals Tribunal** and the **courts** hear challenges (though the Tribunal has barely functioned). The **East African Court of Justice** hears regional-impact cases — the Serengeti route. The **Commission for Human Rights and Good Governance (CHRAGG)** takes rights complaints. And — with great care given the restricted civic space — Tanzania's **lawful civil society, its lawyers, and international networks** are the forces that reach furthest.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether it's on village land, whether the EIA was skipped or defective, whether the impact is regional, and — always — how much danger resistance carries.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (lawfully)	5–10%	weeks	low	The base for everything else
Participation / public hearing	15–35%	during EIA	low	On record; conditions or a redo
Village Assembly / compensation rights	25–50%	months–yr	low	Consent withheld; unlawful acquisition blocked
Challenge to a defective EIA certificate	20–45%	1–3 yr	low–mod	Certificate set aside; project stalled
East African Court of Justice (regional impact)	25–50%	2–4 yr	low–mod	Project ruled unlawful; injunction (Serengeti)
CHRAGG complaint	15–35%	months–yr	low	Findings; pressure; some protection
Lender / insurer pressure (international)	20–45%	months–yr	low	Financing or cover withdrawn
Everything together (village land / regional, world watching)	35–55%	2–4 yr	low–mod	Blocked, stalled, delayed, conditioned
Everything together (state-backed, closed space)	15–35%	years	low–mod, risky	Delayed, exposed — protect people first

The levers that move the needle most are the **village-land rights**, a **defective-EIA challenge**, and — for shared ecosystems — the **East African Court of Justice**, backed by lender pressure and international attention. Serengeti shows the ceiling (a megaproject stopped by a regional court). The honest floor is the restricted, sometimes dangerous civic space — so work lawfully, aim for delay, a set-aside certificate, withheld village consent, and conditions as wins, and protect your people.

On cost and safety: participating, using village structures, and lodging complaints are typically very low-cost; lawyers and international networks bring the bigger cases. But in land conflicts the danger is real — work technically and lawfully, avoid confrontation that can be branded a threat, protect the vulnerable, and route risk through lawyers, CHRAGG, and international allies.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this village-land defect, this regional impact — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it? Name the project, the company, its owners, its foreign investors and lenders.

2. Where is it, and what does it touch — and is it village land? Get the footprint and lay it over **registered village land**, a shared ecosystem or transboundary resource, water and rivers, farmland and pasture, protected areas, communities. **Village land and a regional/shared-ecosystem impact are your sharpest levers**, so establish these first.

3. What stage is it at, and what's the next deadline? Is the EIA in participation? Has the certificate issued (opening a challenge)? Is the Village Assembly being consulted? These openings are time-bound.

4. What does it still need that it lacks? An EIA certificate not issued, a village-land consultation not done, a licence not granted, financing not closed. The missing piece is the soft spot (a licence sought before the certificate is a clear defect).

5. Who else is affected, and who already opposes it? Neighbouring villages, pastoralists and farmers, lawful civil society, and — for shared ecosystems — regional and international allies. The Serengeti drew global support.

What this looks like in real life. A community learns a project is planned on its village land, threatening a shared ecosystem, its EIA thin and the Assembly bypassed. The five questions yield: a company (and foreign lenders) behind it; a site on village land with a regional impact (the sharp levers); an EIA in process and the Assembly not properly consulted (the defects); a project still needing its certificate and licence; and a coalition of villages and international allies. That's the Serengeti/village-land pattern — insist on the Assembly's rights and a lawful EIA, and consider the regional court.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — gathered **lawfully and safely**. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the project brief, the EIS (and its Kiswahili summary), the EIA certificate and conditions, the sector licence, the village-land and compensation records. Use lawful access channels. Then read the EIA hard for flaws — an understated impact, an ignored alternative, a public hearing skipped, a missing Kiswahili summary, a Village Assembly bypassed, a licence sought before the certificate.

Layer two: the ground truth. Dated, located photographs and video of the site, the water, the land, the ecosystem — baseline evidence most of all — and, carefully, the testimony of affected residents. In dangerous contexts, weigh the risk to anyone documenting.

Layer three: the map of village land and shared ecosystems. Lay the project over the registered village land, the shared ecosystem or transboundary resource, and the water, so each lever — the Assembly's rights, the regional impact — is visible. This evidence feeds the domestic challenge and, for regional impacts, the EACJ case.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The project brief, the EIS and Kiswahili summary, the EIA certificate and conditions, the licence, the village-land and compensation records** — from NEMC, the sector regulator, and the village authorities; use lawful channels (8A).
- **Village-land documentation** — from the Village Council and land registry, to establish the Assembly's rights.
- **Ownership, investors, and lenders** — company records and financing information.
- **The village-land-and-ecosystem map** — village land, the shared ecosystem, and water, laid over the site.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — but in Tanzania, build it **lawfully and through village structures**, because confrontation is dangerous. Four moves.

Start with a tight, trusted core. The residents most affected, the people who know the land, a few tireless organisers, and respected village and traditional leaders — people you trust.

Work through the Village Assembly. The Village Assembly and Council are both a legal gatekeeper and a lawful, legitimate vehicle for the community's collective voice. Center them — a properly convened Assembly withholding consent is powerful and hard to brand as a "threat."

Bring in lawyers and international allies — early, and carefully. Reach Tanzanian public-interest lawyers and, for regional impacts, the networks that bring EACJ cases (as ANAW did for the Serengeti). International allies also bring lender pressure and a measure of protection.

Build to last — and protect people. Tanzanian fights run for years, and land conflicts can turn dangerous. Build clear roles, a secure archive, careful communications, a way to decide together, and a serious safety plan. Keep everything lawful and technical, avoid anything that can be branded anti-development, protect the vulnerable, and route danger through lawyers, CHRAGG, and international networks.

STEP 4: LEGAL CHALLENGES, VILLAGE LAND & THE REGIONAL COURT

Law is a real Tanzanian lever — used lawfully — and the regional court is a distinctive, safer forum.

Participate and Use the Village Assembly First

Everything downstream is stronger if you took part lawfully in the EIA (and demanded the public hearing and the Kiswahili summary) and if the **Village Assembly** properly asserted its rights. A skipped hearing, a

missing Kiswahili summary, or a bypassed Assembly are all defects.

Village-Land Rights — the Distinctive Community Lever

On registered village land, the **Village Assembly must be consulted** and any acquisition requires **full, fair, and prompt compensation** under the Village Land Act. This is a genuine, enforceable community right: a project that bypassed the Assembly or offered no proper compensation is unlawful, and the community's own governance can lawfully withhold consent. This is often your strongest and safest ground.

The EIA Certificate, the Courts, and the East African Court of Justice

No lawful project (or sector licence) without an **EIA certificate** — so a **defective or skipped EIA** is a real ground. Domestic routes include the **Environmental Appeals Tribunal** (though it has barely functioned) and the **courts**. And for a project with **regional or transboundary impact** — a shared ecosystem, a transboundary river — the **East African Court of Justice** is a powerful, and comparatively safer, forum: it ruled the Serengeti highway unlawful on Tanzania's treaty obligations, and issued a permanent injunction. Consider it where the impact crosses borders or harms a shared resource.

The Honest Limits

Straight talk: the village-land rights, the EIA, and the regional court are real levers, but the Minister issues the certificate, the Appeals Tribunal barely functions, litigation is slow, and — the gravest limit — the civic space is restricted and land conflicts can be dangerous. So use the strong tools — the Village Assembly, the EIA challenge, the courts, the EACJ, CHRAGG, lender pressure — lawfully, protect your people, and count a set-aside certificate, withheld village consent, an EACJ injunction, delay, conditions, and lender withdrawal as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

A village right becomes a wall. Not "we don't want the project" but *"this is registered village land; the Village Assembly was never properly consulted and no lawful compensation was offered — the acquisition is unlawful."*

A document becomes a defect. *"There is no valid EIA certificate / the public hearing was skipped / there was no Kiswahili summary — so the project cannot lawfully proceed."*

A shared ecosystem becomes a regional case. *"This harms a shared, transboundary ecosystem — a breach of Tanzania's East African Community treaty obligations, as the Serengeti highway was."*

The harm becomes an international story. *"The land our village governs and the ecosystem the region shares — sacrificed, while the world watches."*

Match it to the venue: the objections to the EIA process; the village-land defect to the courts and CHRAGG; the regional impact to the East African Court of Justice; the lenders to international pressure.

STEP 5: MEDIA STRATEGY

In Tanzania, international attention is a real lever — the Serengeti became a global cause — but the domestic space is constrained, so handle media with care. Lawful civil society, international networks, and a careful message make the media front useful but delicate.

Lead with the land and the shared treasure, lawfully framed. Not "the government is corrupt" but "the land our village governs and the ecosystem the region shares — and the law that protects them." Use your strongest material: dated evidence, the village-land and ecosystem map, and — carefully — human voices, without exposing anyone.

Work several audiences at once — reach the world and the lenders. Domestic lawful channels build some pressure; international media and networks reach the financiers and help protect people (the EACOP and Serengeti fights both turned partly on global attention). Make it easy: captioned evidence, accurate summaries, a map, careful voices — and let the community decide what is said and by whom.

Two hard rules. Accuracy above all — one exaggeration can be used against you, or branded as anti-development. And protect people above everything — weigh every public act for safety in a restricted space.

EMAILS & LETTERS

Make them your own; keep them factual, lawful, and calm; keep copies safely; and protect anyone at risk.

8A — Request for the EIA and records (to NEMC / the regulator).

Subject: Request for the EIS and EIA certificate — [project].

"We, residents of [place], request the project brief, the EIS and its Kiswahili summary, the EIA certificate and conditions, and the village-land and compensation records for [project] at [location]. [Contact.]"

8B — Objection / request for a public hearing.

Subject: Objection and request for a public hearing — [project].

"We, residents of [place], object to [project]: [it lacks a valid EIA certificate; the public hearing was skipped; there was no Kiswahili summary; the Village Assembly was not consulted]. We request a public hearing. [Attach evidence.]"

8C — Village Assembly resolution (to the Village Council).

Subject: Convening the Village Assembly on [project].

"We request that the Village Council convene the Village Assembly to consider [project] on our village land, which requires our consultation and full, fair, and prompt compensation under the Village Land Act. [Contact.]"

8D — To a public-interest lawyer / regional-court network.

Subject: Legal challenge — [project].

"Our community faces [project] on [our village land / a shared ecosystem]. We've gathered [the EIS, the certificate, village-land records, photographs] and believe there are grounds on [the village-land rights / a defective EIA / a regional-impact treaty breach for the East African Court of Justice]. We ask for your help, as partners. [Contact and evidence summary.]"

8E — To CHRAGG.

Subject: Complaint — [project] at [location].

"We ask CHRAGG to investigate [project], which [bypassed our village-land rights / threatens our land and water], and [any threats to community members]. [Attach evidence.]"

8F — To an international lender or insurer.

Subject: Environmental, rights, and legal risk in [project].

"We understand your institution may be [financing / insuring] [project] at [location], which [bypassed lawful village-land consultation / lacks a valid EIA / harms a shared ecosystem] and faces legal challenge. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the international press.

Subject: [Community] moves to protect [village land / ecosystem] from [project].

"For generations the people of [place] have governed and lived from [the land / the ecosystem] at [location]. Now [project] threatens it — bypassing our lawful rights. We can provide dated evidence, a map — and, carefully, interviews. [Contact.]"

8H — Rallying the community (lawfully, safely).

Subject: We can protect our land — here's how, lawfully.

"[Project] threatens [our village land / shared ecosystem]. The Serengeti migration was saved when a regional court ruled a highway unlawful. Through our Village Assembly, a lawful EIA challenge, the regional court, and international attention, we have a real chance — working lawfully and protecting one another above all. Please join us. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order — lawfully and safely:

- 1. Nail down the project, its footprint, whether it's village land, and whether the impact is regional.** These are your sharpest, safest levers.
- 2. Take part in the EIA and object (8B); demand the public hearing and the Kiswahili summary.**
- 3. Convene the Village Assembly to assert its consultation and compensation rights (8C).**
- 4. Request the documents (8A) lawfully; check for a missing EIA certificate or a bypassed Assembly.**
- 5. Get a lawyer for a domestic challenge or an East African Court of Justice case (8D).**
- 6. Involve CHRAGG, reach lenders and international allies, and go public carefully (8E/8F/8G).** The Serengeti was saved this way.

Even lean, those six use the law's levers, center the Village Assembly, open the regional-court and lender fronts, and keep your people safe.

WHEN THE SYSTEM IS TILTED

Tanzania's tools are real but narrow, and the field is heavily tilted, so plan for it — safety first.

When the state backs the project and the space is closed. Work lawfully and technically — the Village Assembly, the EIA defect, the regional court, lender pressure — avoid confrontation that can be branded a threat, and aim for delay, a set-aside certificate, and withheld consent as real wins.

When the Appeals Tribunal doesn't function. Rely more on the ordinary courts, the Village Assembly rights, and — for regional impacts — the East African Court of Justice.

When consent is treated as a formality. A bypassed or stage-managed Village Assembly is unlawful. Document it — and convene a proper Assembly.

When defenders are targeted. In conflicts like Ngorongoro, Loliondo, and the EACOP corridor, the danger is real. Take every threat seriously, keep everything lawful, protect the vulnerable, work through lawyers and CHRAGG, and let international attention be a shield.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Tanzania has documented problems with the capture of large projects by investment and political interests, so this matters — approach it with great care.

How to spot it. EIA certificates against the evidence; an EIS written for the proponent; a public hearing or Village Assembly stage-managed; compensation withheld or diverted; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. The **Controller and Auditor General** examines public money. The **Prevention and Combating of Corruption Bureau (PCCB)** investigates graft. **CHRAGG** takes rights complaints. The **courts** and the **East African Court of Justice** can undo an unlawful decision. And, carefully, **lawful civil society and international networks** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; in this space they can be dangerous. Route serious evidence to the auditor, the PCCB, and international networks, protect insiders and witnesses above all, and pair the exposure with the lawful legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, lawfully. The documents build your proof; pinning down the village-land and regional levers aims it; the Village Assembly builds legitimate collective voice; the EIA challenge and the regional court press the case; international attention raises the cost and protects your people. Together they multiply. One at a time, they stall.

Early on (weeks 1–8): nail down the project, its footprint, whether it's village land, and any regional impact; take part in the EIA and object; convene the Village Assembly; request the records lawfully; get a lawyer and careful international allies.

In the thick of it (months–years): assert the village-land rights; challenge a defective EIA certificate in the courts; for regional impacts, bring an East African Court of Justice case; involve CHRAGG and lenders; use

international attention carefully.

The long haul (years): carry the cases through the courts and the EACJ; keep the lawful coalition and the attention alive; hold the line for a set-aside certificate, withheld village consent, an injunction, delay, and conditions — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in Tanzania can be done — a regional court ruled the Serengeti superhighway unlawful and permanently enjoined it, saving the great migration from the paved road. Hold both truths. Tanzania's tools are real, if narrow: an EIA certificate no project can lawfully skip; public participation in English and Kiswahili; distinctively powerful village-land rights, with Village Assembly consultation and full compensation; the courts; CHRAGG; and — for shared ecosystems — the East African Court of Justice. And the constraints are heavy: a Minister who issues the certificate, an Appeals Tribunal that barely functions, a development-first state, a restricted civic space, and genuine danger in land conflicts.

Here's the discipline that wins, and it stays lawful and safe. Establish whether it's village land and whether the impact is regional — your sharpest, safest levers. Take part in the EIA, demand the hearing and the Kiswahili summary, and convene the Village Assembly to assert its consultation and compensation rights. Challenge a defective EIA certificate in the courts, and — for a shared ecosystem — take it to the East African Court of Justice. Involve CHRAGG, reach the lenders and international allies, and protect your people above every other consideration. Count a set-aside certificate, withheld village consent, an injunction, delay, and conditions as wins. That's what the Serengeti did — the regional court, patient lawful litigation, and the world's attention together. So can you — lawfully, and safely.